NANCY FUNGAI TSURO
versus
TINASHE FRANCIS MUPINDU

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 4 March & 13 May 2026

Civil Trial- Breach of Promise to marry

S Sangula, for the Plaintiff
M Moyo, for the Defendant

MAXWELL J:

Background

The Plaintiff claims damages arising from wasted expenses incurred as a result of a pregnancy, together with general damages for breach of promise and for *contumelia* for *injuria*. The plaintiff claims from the defendant payment of US $30 000.00 for *injuria*, US $35 000.00 for damages, US $ 2 600.00 for ancillary and lying in expenses, with interest to be calculated at the prescribed rate from the date of judgment to the date of full and final payment, as well as the cost of suit.

The defendant entered his appearance to defend and filed his request for further particulars. In his request for further particulars, he was seeking clarity on certain issues alleged by the plaintiff in her declaration. On 7 July 2022, the plaintiff filed her further particulars to enable the defendant to plead.

The defendant filed his plea wherein he averred that he had a sexual relationship with the plaintiff, but they were not in a love relationship. He admitted that the plaintiff indeed conceived a child, but she did not do so at the suggestion of the defendant. He alleged that the Plaintiff blocked him on her mobile phone and made it impossible for him to communicate with her about anything concerning the pregnancy. He denied ever having

discussed the subject of marriage with the plaintiff. He stated that the Plaintiff at all times knew that he had children with other women. Further, Plaintiff also had her own love affairs with other men at the material time. Defendant denied making any marriage proposal to the Plaintiff.

The plaintiff filed her replication wherein she persisted with her claim. She denied the allegations by the defendant. She admitted that she blocked the defendant but further averred that the defendant always had other options to reach her, either through SMS cellphone platform, emails and relatives. She further stated that the defendant knew her place of residence. She admitted knowing only two of the defendant's children, and indicated that she discovered another one not known to her. She denies ever having any other love relationship during the subsistence of their relationship.

A Joint Pre-Trial conference was held, and the parties agreed to refer the following issues to trial;

Whether or not there was a promise. If so, was it breached?

If it was breached, the quantum of the damages to be paid.

Trial

The Plaintiff's case

The plaintiff testified that she was in a love relationship with the defendant for approximately four years. The defendant proposed marriage, and the plaintiff accepted. To demonstrate his commitment, the defendant suggested that they conceive a child. The plaintiff became pregnant on or about 14 July 2021. The promise to marry was made verbally and reinforced through WhatsApp messages. On 25 October 2021, the plaintiff and defendant visited the plaintiff's aunt, Mrs. Blandina Mazipetele, and her husband, Mr. Abedinigo Mazipetele, carrying groceries. At that meeting, the defendant declared his intention to marry the plaintiff and confirmed that the pregnancy was planned. He stated that the marriage would take place in December because marriage in November was prohibited by custom. Subsequently, the plaintiff discovered that the defendant was involved with other women. Upon confrontation, the defendant withdrew his promise to marry.

On 17 November 2021, the defendant wilfully broke the promise in a manner that was injurious and humiliating. The plaintiff informed her uncle, Mr. Munyaradzi Mpofu, of

these developments. She further testified that she suffered humiliation in front of the defendant's girlfriend and was compelled to attend medical visits alone. The plaintiff averred that the defendant engaged in multiple affairs, contracted sexually transmitted infections, and fathered two other children during the subsistence of their relationship. She stated that she would not have accepted his proposal had she known of these facts. The defendant failed to provide support during her pregnancy. The plaintiff incurred medical expenses exceeding USD 2,600, which she seeks to recover. She further testified that she used USD 10,000 of her savings, originally intended to establish her own medical practice, to cover costs. She produced receipts and invoices paid towards the pregnancy and preparation for the unborn child. She stated that she lost a locum position due to pregnancy complications and declined a job offer in Namibia in reliance on the defendant's promise to marry. The plaintiff claims emotional, physical, and financial harm, loss of professional standing as a medical doctor, and seeks compensation for pain, discomfort, and loss.

Blandina Rosa Mazipetele was the next to testify. She testified that she regarded the plaintiff as a child and later became her aunt when the plaintiff was a grown-up. She averred that she came to know the defendant after the plaintiff advised her that she was coming home with a man who intended to marry her. She stated that the plaintiff and defendant went to her house on a Saturday during the last week of October 2021, and that their purpose for visiting was to seek guidance on how to proceed with marriage. She further averred that there were only two of them, and they brought some groceries with them. The plaintiff introduced the defendant as her friend, whom she had promised to bring. The defendant expressed that they wanted to get married and sought advice on how to go about it. The defendant further expressed that they wanted to do it quickly.

She testified that she informed them that marriage could not take place in November, so they had to arrange for December. She mentioned that the defendant indicated that he had not communicated with his family about his intention to marry. The plaintiff said that there was an issue of pregnancy, but the defendant indicated that it was not a mistake, rather a planned matter between the parties, and that the pregnancy was fourteen weeks. She stated that after the discussion, the plaintiff and defendant left. After two weeks, she received a call from the plaintiff indicating that she had discovered that the defendant had a wife and child, and they had disagreements about the issue. She mentioned that the plaintiff and the defendant did not get married, and she later realized that their relationship had deteriorated

and the defendant never came back to fulfil his promise to marry. She further averred that she revealed the pregnancy issue to the plaintiff's very worried father, particularly as the plaintiff's health was deteriorating.

Under cross-examination, she stated that an intention to marry is communicated before an aunt, and the man is brought before the aunt. She further explained that some families exchange tokens, while others simply discuss the issue and reach an understanding. She further disputed the allegation by the defendant that they had come to announce the pregnancy.

Mr. Mazipetele testified that he has been a close friend of the plaintiff's father since childhood and that he is personally acquainted with the plaintiff. He stated that he came to know the defendant in October 2021, when the plaintiff introduced him at his residence. Before the visit, the plaintiff had notified his wife of their intention to come, and upon arrival, the plaintiff and the defendant brought groceries with them. During the visit, which coincided with mealtime, the defendant expressed his intention to marry the plaintiff and sought advice on how to proceed. Mr. Mazipetele testified that his wife advised them that, according to tradition, it would not be possible to conduct the marriage in November.

The defendant, however, insisted that he wished to proceed quickly and agreed to arrange the marriage in December. The witness further stated that the defendant disclosed that he had not yet communicated his intention to marry the plaintiff to his parents. At that time, the plaintiff revealed that she was pregnant, and the defendant confirmed the pregnancy, emphasizing that it was not accidental but rather a planned matter. Mr. Mazipetele testified that they parted ways with the understanding that the defendant would inform his parents of the intention to marry. However, the defendant never returned contrary to his promise. Under cross-examination, Mr. Mazipetele disputed the defendant's allegation that the purpose of their visit had been solely to announce the pregnancy.

The Defendant's case

The defendant testified that he met the plaintiff a few years ago through an online dating platform. He averred that his initial intentions were purely sexual; however, over time, the parties developed a friendship that later evolved into a romantic love relationship. He stated that during the course of the relationship, they experienced frequent breakups, arguments, and reconciliations. The defendant further testified that the plaintiff repeatedly

raised the issue of marriage. He maintained that marriage was never his genuine intention, but rather a matter on which the plaintiff exerted pressure. He referred to pages 4–31 of the WhatsApp conversation, specifically page 22, where he told the plaintiff, "This now feels like pressure," to which she responded, "It's not pressure, it's a discussion."

He stated that the relationship ultimately broke down because the plaintiff was involved with another man. He alleged that the plaintiff also engaged in affairs with his best friend and with her sister's boyfriend, whom he believes may be the father of her first child. He added that the plaintiff once accused him of infidelity with another woman. Another contributing factor to the breakup, according to the defendant, was the plaintiff's confrontational behaviour and her involvement of third parties, including his mother, his girlfriend, and the mother of his other children, in matters concerning their relationship.

The defendant testified that he introduced the plaintiff to his uncle and mother. He stated that he was shocked upon learning of the plaintiff's pregnancy, though he initially supported her during the first weeks. He claimed to have contributed US $600 in cash, though he did not retain receipts. He further testified that the plaintiff suggested informing her father's childhood friend, Mr. Mazipetele, about the pregnancy. The parties visited the Mazipeteles with groceries, and during the discussion, he was asked whether he would take care of his family.

He confirmed that he would, but when asked for dates, he gave ambiguous answers, explaining that he had not yet communicated with his parents and did not wish to embarrass the plaintiff. The defendant stated that he did not prevent the plaintiff from accepting employment in Namibia. He also testified to a phone conversation with the plaintiff's uncle, Mr. Munyaradzi Mpofu, who advised him to make the relationship work. He maintained that he did not say anything offensive during that exchange.

Under cross-examination, the defendant explained that his use of the term "babe" in communications with the plaintiff did not signify "oneness." He confirmed that a child was born of the relationship. When asked whether marriage was discussed, he admitted that it was, but insisted that the plaintiff was the one who pushed for it. Regarding maintenance, he testified that his last payment was made in November or December 2025. He stated that his attempts to contact the plaintiff were often thwarted as she blocked him. The defendant further disclosed that he has five children with different women, two of whom were born

during his relationship with the plaintiff. He claimed that he contributes USD $250 in maintenance, but is sometimes unable to do so due to the nature of his employment.

Analysis

The action for breach of promise to marry has a long and settled history in our jurisdiction. The essential elements for breach of promise to marry are established in *Mazarire* v *Magoronga* 1992 (1) ZLR 282 as follows;

that the defendant made a promise to marry the plaintiff;

that the plaintiff accepted the promise and communicated his or her acceptance to the defendant; and that the defendant has broken his or her promise without just cause

The above requirements are strictly applied by the courts to distinguish between a casual dating relationship and a legally binding contract to marry. The law requires more than just love or dating. There must be a serious, mutual intention to enter into a legal marriage. The court looks for an objective manifestation of intent. In *Mupazviriwo* v *Kubeta* HH-227-13, the court emphasized that the promise must be clear and accepted by both parties. The promise to marry can be oral, written, or implied.

The plaintiff testified that the promise was made verbally and reinforced via WhatsApp. Under cross-examination she indicated that she did not remember the exact words used. She stated that they did not discuss the type of marriage they would enter into. A look at the WhatsApp messages produced by the Plaintiff does not confirm any discussion on marriage. Nowhere in the WhatsApp messages produced in court is the promise categorically made and accepted. Plaintiff made reference to the following exchange in the WhatsApp messages:

> "11/02/2021, 11:39 SwiftMD: Random question, Will it be a deal breaker for you if I can't have kids anymore?
> 11/02/2021, 11:40 Mr Grey: Baby, we already have beautiful kids. What do you mean?
> 11/02/2021, 11:42 SwiftMD: I love our kids. What I meant to say is will it be a deal breaker for you if I can't get pregnant anymore?
> 11/02/2021, 11:52 Mr Grey: No, it wouldn't."

There was no explanation of what the deal was. The conversation concerning the deal is not on record. Defendant insisted that he never promised to marry the Plaintiff, and his intention was purely sexual. The fact that Defendant has five children with different women is evidence of a person with no intention to marry. Moreso since two of the children were

born during the subsistence of the relationship with the Plaintiff. Defendant insisted that the visit to the Mazipeteles was for purposes of announcing the Plaintiff's pregnancy. This assertion is supported in the WhatsApp messages produced in evidence. The following exchange appears in the WhatsApp messages produced in evidence:

> "11/10/2021, 06:13 Nancy: Baby we need to plan telling my aunt and mum about the pregnancy this weekend.
> 11/10/2021, 06:13 +263 71 901 8881: Okay
> 11/10/2021, 06:14 Nancy: Sevanhu vakuru we need to call and set a proper visit.
> 11/10/2031, 06:15 +263 71 901 8881: Let's have a sit down and plan it
> 11/10/2021, 06:16 Nancy: Okay, I'll text you when I'm done with work around 6 and I'll come see you."

From that exchange, the issue of marriage was not the purpose of the visit to the Mazipeteles. The Mazipetes were credible witnesses. Their evidence was to corroborate the Plaintiff's testimony. Corroborative evidence is evidence that strengthens or confirms already existing evidence.

In *Fox* v *HM Advocate* 1998 JC 94, LJG (Rodger) at 100-101 corroborative evidence was described in the following terms; -

> "Corroborative evidence is…… evidence which supports or confirms the direct evidence of a witness….. the starting-point is that the jury have accepted the evidence of the direct witness as credible and reliable. The law requires that, even when they have reached that stage, they must still find confirmation of the direct evidence from other independent direct or circumstantial evidence…… the evidence is properly described as being corroborative because of its relation to the direct evidence: it is corroborative because it confirms or supports the direct evidence. The starting point is the direct evidence. So long as the circumstantial evidence is independent and confirms or supports the direct evidence on the crucial facts, it provides corroboration and the requirements of legal proof are met.".

It therefore follows that where there is no already existing evidence, corroboration does not arise. The direct evidence as in the WhatsApp chats differs from what they had been advised as the purpose of the visit. Though the Mazipeteles' testified well, the statement quoted above made on 11 October 2021 at 06:13 makes the Plaintiff a dishonest person. She discussed revealing the pregnancy to her aunt and mum with the Defendant yet to the Mazipeteles she stated that she was bringing the Defendant to discuss marriage. The corroborative evidence from the Mazipeteles cannot stand in the absence of credible and reliable direct evidence from the Plaintiff. In *Manjala* v *Maphosa* SC18/16 GUVAVA JA stated that;

"If a litigant lied in one material respect, the court would be entirely justified in taking the view that he has lied in all other respects and in treating his evidence accordingly. In *Moroney* v *Moroney* SC 24/13 it was held as follows:

> "I accept that the respondent failed to truthfully and adequately explain the circumstances of how the various amounts that the respondent claimed came from Helena Limited found their way into the Standard Chartered Isle of Man Account. The court ought to have disbelieved him …"

In *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith* HH1311/03 NDOU J at p 7 of the cyclostyled judgment stated as follows:

> "It is trite that if a litigant gives false evidence, his story will be discarded and the same adverse inferences maybe drawn as if he had not given evidence at all-see *Tumahole Bereng* v *R* [1949] AC 253 and South African Law of Evidence by LH Hoffmann and DT Zeffertt (3ed) at p 472. If a litigant lies about a particular incident the court may infer that there is something about it which he wishes to hide.""

The issue is compounded by the fact that the WhatsApp messages seem to have been selectively chosen. The following exchange on page 17/87 gives the impression that some parts of the conversation are missing.

> "13/10/2021, 17:38 Nancy: You're still coming to see me after work right? I'm at Health Point until 11pm
> 13/10/2021, 23:24 Nancy: The reason why I asked is, you prioritisd going to the gym before us talking about something I had highlighted was really important to me.
> 13/10/2021, 23:25 Nancy: You aren't too tired to go to the gym but you are too tired to talk to me
> 13/10/2021, 23:26 Nancy: Tinashe, I've been abandoned and alone before when I was pregnant. If you aren't ready to meet my family please tell me now.
> 15/10/2021, 20:48 Nancy: Babe, I need some money. When do you think you'11 be able to return the 1.7k I lent you. I still havent paid for Ropas fees."

The responses to the questions asked are not shown suggesting that this is an incomplete document. A negative inference is therefore drawn from the fact that some chats are left out. It would have assisted to have the Defendant's response to the question whether he was ready to meet the Plaintiff's family. The WhatsApp messages provided are of minimal assistance to the resolution of the matter. The following clearly are mostly one side of a conversation.

> "25/10/2021, 20:50 Nancy: Have you thought more on the dates discussion that my aunt highlighted over the weekend
> 25/10/2021, 20:50 Nancy: I will be 14weeks this week and I need to tell mum, but it would be ideal if I'm to break the news, have the dates and full plan when I tell her.

> 25/10/2021, 20:51 Nancy: I know we have a lot going on but it would be ideal for us to tell mum before vabvunza
> 25/10/2021. 21:52 +263 71 901 8881: This your suggestion ka.
> 25/10/2021, 22:30 Nancy: What is your suggestion?
> 25/10/2021, 22:31 Nancy: I need to know what on your mind babe, so I have something to tell mum.
> 25/10/2021, 22:36 Nancy: Please tell me what's on your mind. I really need to know.
> 26/10/2021, 06:23 Nancy: Baby, may you please respond, I need to know what you are thinking and what you want to do. Please.
> 26/10/2021, 06:36 +263 71 901 8881: This now feels like pressure
> 26/10/2021, 06:37 Nancy: It's not pressure, I just need to know what you think
> 26/10/2021, 06:38 Nancy: It's a discussion."

One would have expected the promise to marry to be part of the above conversation. Instead, Defendant complained of being pressured. In his evidence in Chief Defendant stated that Plaintiff would start the discussion of marriage and he would have his reservations. The following chat confirms the reservations.

> "29/01/2021, 04:11 - Mr Grey: I love you so much but the truth is I'm afraid of you. I'm afraid you will one day do that to me too coz I don't fully understand why you did that in the first place and that's why I hold back. That's the only thing holding me back to be honest."

Defendant disputed what happened at the Mazipeteles. According to him, he was asked in deep Shona if he would take responsibility for Plaintiff's pregnancy and he agreed. He stated that when they were about to leave, he was asked for dates and he was surprised. He stated that he did not answer and promised to get back to them. He confirmed that he had not advised his parents. He stated that he did not want to embarrass the Plaintiff and therefore gave ambiguous answers. Under cross examination, Defendant admitted that he did not correct the Mazipeteles on the issue of marriage. He did not protest when he was asked for dates.

Visiting a woman's aunt and bringing groceries, is a symbolic act that, in Zimbabwean law, signals a transition from a private affair to a formal engagement. However, Defendant indicated the visit was not for purposes of arranging marriage and it was Plaintiff who prepared the groceries, and he was not aware of what was in the paper bags. Can Defendant be bound by a promise made to a third party (aunt or uncle) to avoid embarrassing the Plaintiff? I would have found him liable had the Plaintiff not produced the WhatApp chats that specifically stated the purpose of the visit as simply to announce the pregnancy. A cultural yardstick cannot be used in the circumstances of this case. The parties said they met on a dating website initially for purposes of having sexual intercourse. That is contrary to

cultural norms. They went to visit the Mazipeteles before the Defendant appraised his parents of his intention to marry.

It is trite that in civil matters the standard of proof is on a balance of probabilities. That is explained in *Miller* v *Minister of Pension* [1947] 2 All ER 372 at 374 by LORD DENNING as follows,

> "The degree of proof is expressed as follows,
> "It must carry a reasonable degree of probability but not so high as is required in a criminal case. If
> the evidence is such that the tribunal can say 'we think it more probable than not', the burden is discharged, but if the probabilities are equal, it is not."

See *Tapiwa Nalomwe* v *Nicholas van Hoogstraten*, HH444/18 and *Lewenod Enterprises Private Limited* v *Freight Africa Logistic HH 653-15.*

The totality of the above evidence and the WhatsApp chats produced in evidence lead to the conclusion that, on a balance of probabilities, Defendant did not promise to marry the Plaintiff.

Damages to be paid

Even though the balance of probabilities show that the Defendant did not promise to marry the Plaintiff, there are costs associated with the pregnancy that the parties should share. The plaintiff pleaded for US $ 2 600 in lying in expenses and US $35,000.00 for general damages.

There is no doubt that the parties have a child together. The plaintiff produced documentary evidence, pages 32-41 of Exhibit A, showing the expenses she incurred during the pregnancy without the defendant's contribution. Lying-in expenses are not recoverable in total because they have to be shared equally, meaning the defendant will pay US $1,300 as lying-in expenses. I believe that an award of US $1,300.00 is reasonable and equitable. This reflects the defendant's 50% share of the necessary costs of childbirth. On general damages, the plaintiff testified that she used US $10 000 00 of her savings intended for a medical practice and lost a job offer in Namibia. As the promise to marry was not proved, Defendant cannot be made to compensate for the lost job offer. Plaintiff is, however, entitled to recover 50% of the savings that she had to utilize during her pregnancy.

Accordingly, it is ordered that:

The defendant be and is hereby ordered to pay the plaintiff the following amounts:
US $5 000.00 for damages

US $1 300.00 for ancillary and lying-in expenses.

The defendant is further ordered to pay the plaintiff interest on the aforesaid amounts at the prescribed rate of 5% per annum from the date of judgment to date of full and final payment

Each party bears its own costs.

MAXWELL J:……..

D. Matete & Co, Plaintiff's Legal Practitioners
Dube-Banda Nzarayapenga & Partners, Defendant's Legal Practitioners